



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :

- against - :

FINAL

Sergeant Gregory Smith :

ORDER

Tax Registry No. 951274 :

OF

Brooklyn Court Section :

DISMISSAL
-----X

Sergeant Gregory Smith, Tax Registry No. 951274, having been served with written notice, has been tried on written Charges and Specifications numbered 2022-26571, as set forth on form P.D. 468-121, dated June 29, 2022 (amended on January 9, 2023), and after a review of the entire record, Respondent is found Guilty.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Sergeant Gregory Smith from the Police Service of the City of New York.

HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER

EFFECTIVE: 9/28/23

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POLICE DEPARTMENT

May 17, 2023

-----X
In the Matter of the Charges and Specifications :

- against - :

Sergeant Gregory Smith :

Tax Registry No. 951274 :

Brooklyn Court Section :

Case No.

2022-26571

-----X
At:

Police Headquarters
One Police Plaza
New York, NY 10038

Before:

Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

Lauren Silverstein & Sadijah Johnson, Esqs.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent:

Roger Blank, Esq.
136 Madison Avenue, 6th Floor
New York, NY 10016

To:

HONORABLE KEECHANT L. SEWELL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Sergeant Gregory Smith, while off-duty and assigned to the 41st Precinct, on or about June 27, 2022, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: Said Sergeant Gregory Smith had a physical altercation with a person known to the Department.

A.G 304-06, Page 1, Para 1

PROHIBITED CONDUCT

2. Said Sergeant Gregory Smith, while off-duty and assigned to the 41st Precinct on or about June 27, 2022, failed to make proper notifications after an off-duty incident. (*As added*)

P.G. 212-32, Page 1, Paras. 1-2, Note

OFF-DUTY INCIDENTS
INVOLVING UNIFORM
MEMBERS OF SERVICE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on April 6, 2023.

Respondent, through his counsel, entered a plea of Not Guilty to the charged misconduct. The Department called Sergeant Joseph Doria and Police Officer Julio Gonzalez as witnesses.

Respondent called K.S. as a witness and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, the Tribunal finds Respondent Guilty of Specifications 1 and 2 and recommends that Respondent be terminated.

ANALYSIS

The following is a summary of the facts that are not in dispute. On June 27, 2022, at approximately 2300 hours, Complainant placed the first of two calls to 911 (T. 64; Dept. Ex. 1, 1A, 1B). The calls are summarized below.

Department's Exhibit 1A

0:00-0:28 911 operator asks Complainant for the nature of her emergency, and the recording picks up Complainant's voice telling someone, "Don't put your fucking hands on

me; that's what you want to do? You fucking piece of shit. Get the fuck away, get the fuck away. You're a fucking sergeant at the 41."

- 0:40-0:57 Complainant says, "Hello?" 911 operator asks her for her address. Complainant sobs as she responds, "I don't know." 911 operator asks, "Ma'am, please give me your address; we'll send police right away; what's your address, what apartment?" Complainant continues to sob.
- 0:58-1:17 Complainant shouts, "Get somebody here, now," then tells someone, "You'd better not fucking touch me. You want to throw me on the fucking floor; you want to beat me? Get the fuck out of here, go! Don't touch me."
- 1:18-1:26 Complainant begins screaming, "No!" as her voice trails off, and the recording ends.

Department Exhibit 1B

- 0:00-00:29 Complainant states, "Hi, I'm at [REDACTED] [unintelligible] Avenue; I called you guys a half hour ago because my boyfriend, he's a sergeant at the Precinct, he beat the shit out of me, and now he's kicking me out. I need you guys to fucking come and help me because now he thinks he has control of everything. Everything."
- 00:30-00:42 Complainant shouts, "Get out of here," then there is incoherent yelling as the 911 operator repeats the address. Complainant confirms the address and then states, "I'm standing outside the fucking door. He dragged me; he beat me."
- 00:48- 01:05 The 911 operator asked if there were any weapons involved. Complainant states, "He has weapons inside his house," then says, "I need you to come now because he is in danger, he is [inaudible], and I need help."
- 01:06-01:16 911 operator asks if Complainant is injured. Complainant begins shouting, "Yes."
- 01:17-01:30 As the 911 operator begins asking Complainant about weapons, a man's voice is heard, and Complainant screams and yells, "Stop, what is wrong with you." A male voice then states, "You're a fucking... You're a fucking..." Complainant continues screaming, "Stop, get off of me, stop." A click is heard.
- 03:12 A dial tone is heard.
- 03:31-22:52 The 911 operator calls IAB and is placed on hold.
- 22:53- 23:40 The operator is connected with an investigator from IAB. The operator provides the job number associated with the call and informs the investigator that Complainant "call[ed], she was screaming, she waited about 30 minutes, it was a job already in the system for an assault. Then she started screaming and told me

he beat and dragged her; she said he was a 41 sergeant at the precinct.” She then provides Respondent’s name.

23:50-24:00 After being asked by the investigator if “he was the one that . . .” the operator continues, “Yea, the CV was screaming, ‘I need you to get here, he is in control of everything, he’s a 41 sergeant.’” She notes that Complainant hung up on her and provides the location to the investigator.

Police Officer Julio Gonzalez and his partner, Police Officer Aniket Sharma, responded to the location Complainant indicated during the 911 call¹; when they arrived at that apartment, no one answered the door (T. 24-25). When Gonzalez’s patrol supervisor, Sergeant Conroy, called Complainant’s callback number, she provided her location, which was approximately two blocks away (T. 30).

When Gonzalez met Complainant, she told him that she and Respondent had a dispute, that he would not allow her to leave his apartment, and that he dragged her on the floor; at some point during the altercation, Respondent had his hands around her throat (T. 27-28, 34). Gonzalez testified that during his conversation with her, he stood within approximately two feet of her and did not detect the odor of alcohol (T. 27). He recalled that she appeared upset (*Id.*). Gonzalez asked her whether she was injured, and she showed him scrapes on her knees (T. 28, 36). His body-worn camera captured their conversation (Dept. Ex. 4A; *see* Dept. Exs. 4B, 4C, 4D). The interaction between Complainant and the responding police officers is summarized below.

Department Exhibits 4A-4C

23:53:55- 23:54:28 Officers Dwyer, Shota, and Sharma approach the Complainant outside a vehicle and ask what is happening. EMS personnel also approach.

23:54:29- 23:54:55 Complainant details, “So listen, Imma [phon] tell you this. My boyfriend is a police officer; he works in the 41. Ok, so when he realized that I

¹ Sergeant Conroy, Police Officers Dwyer, and Shota also responded to the location in the 911 call (Dept. Exs. 4A-4D; T. 35)

called you guys, he got really angry and dragged me all through the house, right? And I don't know if you have the phone call; he dragged me up and down the house." Complainant makes a gesture with her finger in a back-and-forth motion.

- 23:54:56-23:55:21 One officer asks, "Where did this happen?" Complainant replies, "Inside his apartment." She gives the address, then informs the officers, "He left the apartment. He left. He tried to damage my phone, and he left."
- 23:55:22- 23:56:23 Complainant states EMS cannot help her; she has been through this plenty of times. She details that she has physical injuries and scrape marks on her knees. She further recounts, "He pulled my hair." After giving her name, Complainant states, "I have multiple videos of this, and I never called you guys. But tonight got out of hand so that I feel I had to call you guys," and "He feels like he is untouchable."
- 23:57:53-23:58:23 As one of the officers repeats what Complainant had said, she interrupts with, "He beat the shit out of me; this wasn't the first time." The officer asks, "You said he choked you?" Complainant answers, "Yes." She denies losing consciousness or having pain in her neck. She continued, "He grabbed me with both hands to keep me quiet."
- 23:59:50-00:00:09 Complainant informed the officers again, "Once he realized I was talking to a female on the phone, He left." "He threw all my shit out in the hallway, and he just..." When asked if there were kids in the apartment, she mentioned his 16-year-old son was there.
- 00:01:55-00:13:38 Complainant fills out a DIR.
- 00:26:32-00:26:40 Complainant informed the officers, "I've been with him for four years, and I've never seen him act like this."

(Dept. Ex. 4A²).

Sergeant Joseph Doria testified that on June 27, 2022, he was assigned to Bronx Investigations; on that date, he was notified of an off-duty incident involving Respondent and reported to PSA-8 to interview Complainant (T. 44). Sergeant Doria stated that he interviewed her in a room on the main floor of the command at approximately 0300 hours on June 28, 2022; during his interview with her, he sat within approximately five feet of her and did not detect the

² The content of Department Exhibits 4B and 4C are duplicative of the contents of Department Exhibit 4A.

odor of alcohol (T. 44-47; Dept. Exs. 2A, 2B). He observed that Complainant appeared to be upset and that she looked “kind of disheveled” (T. 45). Sergeant Doria also observed marks on the left side of Complainant’s neck; Complainant showed him additional marks on her elbows and knees (T. 46). Her interview statement is summarized below:

Complainant’s Statement

In Complainant’s recorded interview, she stated that she had arrived at Respondent’s home at approximately 2045 hours and that they had cooked. She noted that Respondent drank something but did not know what; she recalled that she had a glass of wine before arriving at his home. According to Complainant, Respondent became upset and “grabbed [her] neck with force” as she lay in bed. While Respondent held her neck, Complainant called 911 from her mobile phone. Complainant could not recall what, if anything, Respondent was saying as he held her, but she described his demeanor as being “a lot of rage.” Complainant stated that she began screaming, and then the call was disconnected. She got up and went to the restroom; Respondent followed her there and grabbed her neck again, causing her to scream again. According to Complainant, Respondent told her, “Oh, my son is here” (Dept. Ex. 2B at 5, 8-11).

Complainant stated that Respondent dragged her from the restroom to the living room and threw her belongings out; he then called his son from his room and said, “Look, look, this is going on,” before walking past her in the hallway and leaving the apartment. Complainant clarified that Respondent was dragging her from room to room by her hair and that the item he threw into the hallway was an overnight bag. Complainant stated that she did not believe Respondent’s son witnessed the altercation, but that it was likely he heard it. As Respondent left the apartment, he told Complainant that he could not believe she had called the police.

Complainant explained that once Respondent became aware that she was on the phone with police, he ceased the assault before putting her out of the apartment (*Id.* at 11-16, 18-19).

Complainant stated that she told the EMS workers who responded to her 911 call that her injuries were limited to scrapes on her knees; once she arrived at the police precinct, however, someone pointed out to her that there were red marks on her neck, as well as abrasions on her elbows (*Id.* at 22-24).

Sergeant Doria testified that he did not see Respondent at the command until about 0600-0630 hours on the morning of the interview. According to Sergeant Doria, Respondent could not be located before that time. When Respondent reported to PSA8, he was armed. Sergeant Doria did not observe any injuries to Respondent (T. 47-48).

During his investigation, Sergeant Doria obtained the Body-Worn Camera recordings of the police officers who responded to the incident, the recording of the 911 call Complainant made, and the ICAD report (Dept. Exs. 1A, 1B, 1C, 4A, 4B, 4C, 4D). He also obtained surveillance video recordings from the apartment building where Respondent's mother had her apartment and that building's elevator (Dept. Exs. 6A, 6B, 6C). Finally, he obtained photographs of Complainant's injuries taken by the responding police officers; he then directed that additional pictures of her injuries be taken (Dept. Exs. 3A-3E; T. 48-51).

Photographic Evidence

Department Exhibit 3A is a frontal view of Complainant's face, with her head slightly to the left. This photograph does not appear to depict any injuries.

Department Exhibit 3B is a photograph of Complainant's right knee, showing what appears to be an abrasion on the kneecap.

Department Exhibit 3C is a photograph of Complainant's left knee, showing what appears to be an abrasion on the kneecap.

Department Exhibit 3D is a photograph of Complainant's left forearm, showing what appears to be an abrasion midway between her wrist and elbow.

Department Exhibit 3E is a photograph of the left side of Complainant's neck, showing what appears to be an area of redness extending from the area beneath her left ear, following her jawline to the front of her neck.

Respondent's Case

Respondent offered the testimony of his son, K.S., and his own. He also provided a documentary exhibit, Respondent's Exhibit A. The relevant trial testimony is summarized below.

K.S.

K.S. is Respondent's seventeen-year-old son. On July 27, 2022, he resided with his grandmother in their two-bedroom apartment. He testified that Respondent and Complainant were in the apartment, but his grandmother was not. K.S. explained he was in his bedroom, with the door open, when he heard Complainant enter the apartment, leave for a time, then return (T. 70-72).

He testified that he eventually heard a conversation between Complainant and Respondent in which Complainant was "yelling and cursing" while his father spoke quietly. Respondent continually asked Complainant to "Please leave," and she responded, "I'm not leaving," cursing at Respondent. When asked on direct examination, K.S. denied hearing "anything that . . . sounded like . . . there may have been, beyond this verbal conversation or yelling conversation, a physical altercation" (T. 72-73). He claimed that he became aware that

Complainant left the apartment when his father called him from his room “to witness her not be there,” and Respondent left (T. 73-74).

On cross-examination, K.S. testified that his bedroom was “a few feet” from the door to the apartment (T. 75). He denied that there ever was a time that his bedroom door was closed; he further denied that he had headphones on which could have interfered with his ability to hear what transpired in the apartment, claiming that he only “had one Airpod in” (*Id.*). K.S. clarified that when Respondent called him out of his room, Complainant was still in the apartment before leaving after that (T. 76-77). He denied seeing Respondent make any physical contact with Complainant to get her to leave the apartment (T. 78). K.S. also denied hearing any sounds from the hallway after Complainant left the apartment (T. 84-85). He stated that Respondent had not told him that he was going, had not said anything about police officers responding to the apartment, and did not speak to him again that evening (T. 78-79).

K.S. denied ever discussing the events of that evening with Respondent and only spoke of them when Respondent directed him to talk to his attorney on the telephone as he and K.S. remained in his bedroom (T. 81-83). He denied that Respondent ever explained that his appearance before this Tribunal had anything to do with Respondent’s employment (T. 84).

In response to questioning by the Tribunal, K.S. admitted that he was aware Respondent was facing disciplinary charges, but was not made aware of that fact before being called to testify (T. 87).

Respondent

Respondent testified that he is a single parent whose son, K.S., resides with his paternal grandmother. According to Respondent, his mother has a two-bedroom apartment, one bedroom

for her grandson K.S. and one room for her. Respondent testified that her bedroom door is locked whenever she is not in her apartment (T. 90-91).

Respondent testified that during the evening of June 27, 2022, he was in his mother's apartment with his son, K.S.; he asserted that he arrived at approximately 1700 hours and that his mother's bedroom door was locked (T. 91, 94). He recalled that at about 2000 hours, Complainant visited the apartment; she was inside for approximately 15 minutes before she inquired whether there was any food in the apartment (T. 94). When Respondent told her there was none, she left to get something to eat; Respondent claimed she was gone for approximately 45 minutes before returning to the apartment with "KFC" (*Id.*).

Respondent testified that when Complainant returned to the apartment, her demeanor had changed; specifically, she seemed more relaxed (T. 95). He stated that after she finished consuming her food, they were "a little bit intimate. A little bit, but not too much. Just kissing. She was kissing on me. I was kissing back on her neck and stuff. I was sucking on her neck" (T. 96). Respondent claimed he sucked on Complainant's neck to the point where it left a "reddish mark . . . [t]he resemblance of a hickey" on the top left part of her neck (T. 96-97). This interlude lasted 15-20 minutes, during which Respondent claimed to have smelled alcohol (T. 97).

Respondent testified that Complainant told him she had consumed a drink before arriving at his mother's apartment. He stated that when she returned from purchasing food, she had a white cup and a half-filled Poland Spring bottle; he claimed the cup and the bottle had alcohol in them. According to Respondent, he raised the issue of Complainant drinking, and she cursed at him in response, calling him a "motherfucker, an asshole, a piece of shit." After her response, Respondent asked Complainant to leave the apartment (T. 98).

Respondent testified that he took Complainant's bag, which he believed contained all her belongings, and put it by the apartment door, but still within the apartment. He denied ever throwing her belongings into the hallway and claimed it took over an hour for Complainant to leave. Respondent testified that he asked Complainant to leave repeatedly and that every time he did so, she cursed at him (T. 99-100).

Respondent claimed that he called his son from his room, asking him to come out to witness that Complainant was not leaving the apartment. According to Respondent, Complainant stood by the apartment door for 15 minutes, refusing to leave as he asked her several times to do so, all while his son K.S. witnessed the exchange. After 15 minutes, Complainant put her shoes on and left the apartment (T. 100).

Respondent testified that he did not see whether Complainant had her phone in her hand while she was in the apartment, but he saw her holding it once she stepped into the hallway. He claimed she threatened him, saying, "Don't come next to me or else I'll call the police on your ass" (T. 101). According to Respondent, Complainant remained in the hallway, screaming; he then heard her using her phone. Several minutes later, he put his shoes on, locked the apartment door, and walked past her without saying anything. He asserted that he left the apartment to "take a walk" (T. 102).

Respondent testified that approximately two hours later, while still on his walk, he received a telephone call from Sergeant Padilla³ advising him that an allegation had been made against him and that he would have to report to PSA 8. He testified that he proceeded to the PSA 8 satellite location, which was 15-20 minutes away on foot. When he arrived at the satellite location, he was advised that he would have to go to the PSA 8 Throgs Neck location; he waited

³ Sergeant Padilla is a union delegate assigned to the 41st Precinct (T. 134).

for over an hour for Sergeant Padilla to meet him at the satellite location and drive him to the primary site, which was 30 minutes away (T. 103-05).

Respondent testified further that on November 16, 2022, he received a text message from Complainant in which she asked him about a birthday engagement trip; he testified that he replied to the message the next day (T. 107; Resp. Ex. A). According to Respondent, Complainant would try to contact him by text message three to four times per week (T. 111). He also testified that while Complainant had long hair, the hair was a weave⁴ (T. 113). Respondent claimed that Complainant had been to his mother's apartment before June 27, 2022, and denied that he had prepared any food for the Complainant that evening (T. 112, 115-16). He stated that he and Complainant had dated since 2019 and that they had discussed her alcohol consumption before June 27, 2022 (T. 114).

On cross-examination, Respondent claimed that although he had been a sergeant since 2020, he did not know the procedure for off-duty incidents involving Members of Service⁵ (T. 117). When he was confronted with his assertion that he and Complainant were engaging in "intimacy" on the couch while his son's bedroom door was open, he responded that "[k]issing is not that intimate" before he conceded that he did not attempt to close his son's bedroom door to be more discreet (T. 119-20).

⁴ I take judicial notice that a weave is a means of attaching hair to an individual's natural hair.

⁵ The Tribunal reminded counsel that ignorance of Patrol Guide procedures is not a defense to a charge of violating the Patrol Guide.

Respondent conceded that although he claimed he attempted to get Complainant to leave his apartment for almost an hour; that she yelled and banged on his door; and that she threatened to make a false allegation against him, he never called 911 (T. 127).

He claimed that after walking for about two hours, he was about to make a notification, but he “didn’t get a chance to because Sergeant Padilla called [him] first” (T. 132). Respondent admitted that even though he was aware Complainant had called 911 before he left his mother’s apartment; that police officers were responding to that location; and that he had left the location armed, he never made a notification to anyone that he had left the apartment and was armed (T. 138-39). On redirect examination, he explained that he did not make a notification because his interaction with Complainant was “only a verbal dispute. It didn’t sort of constitute into anything to go physical” (sic) (T. 160).

Respondent conceded that although he testified that he put Complainant’s bag in the hallway before she left his mother’s apartment, during his Department interview, he admitted, “Yeah, I think I did throw her stuff out after she got out” (T. 141). In his Department interview, he further admitted the truth of Complainant’s accusation that he “threw it, and it was all strewn on the floor,” saying, “Yeah, I did” (*Id.*).

Respondent was confronted with his statement in his Department interview that when Complainant left the apartment, K.S. was “. . . in the back . . . I believe he’s either sleeping or on his headphones” and his specific denial that K.S. was able to see what transpired between him and Complainant (T. 142). He claimed, under oath, that the transcription of the interview was incorrect⁶ (T. 143).

⁶ The Tribunal admitted the above-referenced portion of Respondent’s Department interview as a prior inconsistent statement (Dept. Exs. 5A, 5B at p. 31-32).

Respondent admitted that, contrary to his denial in his Department interview on November 29, 2022 that he had any contact with Complainant since the dismissal of his criminal case, he had contact with her seven days before his Department interview on November 16 and 17, 2022 (T. 149-153; Resp. Ex. A). He explained that during his Department interview, he did not remember that they had communicated because “. . . we don’t communicate” (T. 153). He conceded that it would have been relevant to inform the investigators during that interview that Complainant had contacted him regarding a future trip (T. 154-55). He offered that he was nervous during the Department interview as he had never been in that setting before (T. 160).

Respondent conceded that the unidentified male voice recorded on Department’s Exhibit 1A was his (T. 155).

Credibility

Few things are more complex yet more fundamental to the role of a trier of fact than attempting to reconstruct past events based on opposing accounts. In a hearsay case, particular attention must be paid to the evidence. This Tribunal has held many times that while hearsay is admissible in administrative proceedings and may be the sole basis for a finding of fact, it must be carefully evaluated before it is relied upon. The more important the evidence is to the case, the more critically it should be assessed (*See Disciplinary Case No. 2018-19483* [Apr. 29, 2021], citing *Calhoun v. Bailar*, 626 F.2d 145, 149-50 [9th Cir. 1980]; *Police Dept. v. Acosta*, OATH Index No. 464/00 [January 7, 2000]). Factors such as corroboration, consistency, bias, logic, and the degree to which an account comports with common sense and general human experience must be considered (*Disciplinary Case Nos. 2015-16254 & 2018-19141* [July 9, 2021]; *Dept. of Correction v. Hill*, OATH Index Nos. 861/21 & 1136/21 [Jan. 23, 2023]).

I find the respective testimonies of Police Officer Gonzalez and Sergeant Doria credible. They are disinterested witnesses whose testimony was consistent with the performance of their duties as investigators and collectors of evidence.

Based upon the totality of the record, I find that Complainant's hearsay statements, contained in Department's Exhibits 1-A, 1-B, 2A, and 2B, bear sufficient indicia of reliability upon which to base findings of fact. I make this finding mindful that she did not appear before the Tribunal and present herself for examination; nevertheless, her statements were logical and consistent with other credible evidence. As outlined above, the timing of her initial outcries, the circumstances under which she made her statements, and the substance of those statements strongly support a finding that her statements are credible.

Complainant's hearsay statements, contained in the 911 calls, body-worn camera footage, and the sworn interview, were provided in close temporal proximity to the incident they described. These statements are all consistent concerning the material facts of this case. Of particular evidentiary value are the statements Complainant made to the 911 operators, which are, on this record, her first outcry after the altercation.

In Department's Exhibit 1A, Complainant appears terrified, hysterical, and in close physical proximity to her assailant. I note that Respondent admitted in his trial testimony that the male voice captured in that recording is his; the recording also seems to capture an assault in progress, based upon Complainant's screams. The call is cut off before Complainant can provide any helpful information to the 911 operator.

In Department's Exhibit 1B, Complainant told the 911 operator, "My boyfriend beat the shit out of me." This declaration qualifies as an excited utterance, a firmly-rooted exception to the hearsay rule, which, by its nature, is deemed trustworthy. All of the surrounding

circumstances support a finding that Complainant spoke spontaneously while under the influence of a startling event and did not have time for reflection or design. Complainant's subsequent statements to the responding police officers and Sergeant Doria were all consistent with this excited utterance.

Another important credibility factor in a hearsay case is corroboration. The independent evidence in this case extensively corroborates Complainant's statements. Her assertion that Respondent injured her by grabbing her around her neck and dragging her through the apartment was corroborated by the documented injuries to her neck, knees, and elbows. There were other facts in her statement, such as Respondent throwing her bag into the hallway and strewing its contents on the floor, which Respondent admitted to, further corroborating her statements.

Respondent argued that Complainant's statements were unreliable because (1) she did not complain of, or manifest, injuries to her scalp consistent with, in Respondent's view, being dragged on the floor; (2) the assault could not started in a bedroom as Complainant reported because his mother always kept her bedroom door locked; and (3) she had been drinking before the incident. I find these rationalizations to be without merit.

Respondent's testimony strained credulity and was contradictory. First, his attempt to characterize the redness on Complainant's neck as the result of his sucking on her neck is illogical and contradictory to an objective evaluation of the documentary evidence. The size and shape of the red marking on Complainant's neck, captured in Department's Exhibit 3E, is more consistent with the size of a hand than someone's mouth. This makes it more likely that the mark was created by the force of Respondent gripping Complainant's neck along her jawline, as she alleged, rather than Respondent sucking on her neck.

Second, Respondent took contradictory positions at trial and during his earlier Department interview concerning whether his son, K.S., was a witness to the alleged altercation between him and Complainant. I find K.S.'s testimony that he was in the apartment with his bedroom door open and did not hear any violent confrontation to be irreconcilable with Respondent's assertion in his Department interview that K.S. was in his bedroom and likely wearing headphones. Respondent had to have been aware of what he had said in his Department interview before he called his son as a witness during this trial. Respondent attempted to deny, under oath, the making of the same statement in his Department interview by claiming, without evidence, that the transcript was in error. This facile attempt to distance himself from unflattering, noncontroversial facts was unpersuasive.

Finally, I find that Respondent's testimony regarding how Complainant sustained her injuries was a false narrative designed to avoid responsibility for the injuries that the credible, relevant evidence establishes overwhelmingly that he caused. This evidence also is suggestive of Respondent's consciousness of guilt.

I find K.S.'s testimony unpersuasive. Because of his relationship with Respondent, particularly because he is a minor, he has a presumptive bias in favor of his father. He was also placed in the impossible position of testifying on behalf of his father without a complete understanding of the gravity of his potential testimony. I further find that the discrepancies between his testimony and Respondent's position in his Department interview regarding whether K.S. was even a percipient witness render the probative value of his testimonial evidence nil.

Specification 1: Engaging in a Physical Altercation

I find that the Department Advocate has met her burden of proof by a preponderance of the credible, relevant evidence that Respondent engaged in a physical altercation with

Complainant and that his conduct was to the prejudice of good order, discipline, and efficiency of this Department.

Complainant told a 911 operator, and subsequently told police officers, that Respondent beat her, pulled her hair, choked her, and dragged her on the floor. Her allegations were close in time to the events they described, and her statements were consistent over time. Finally, her statements were corroborated by the injuries she reported and those observed and photographed by police officers. Respondent's testimony that he had only a verbal dispute with Complainant and that the acts of violence she accused him of never occurred was unpersuasive. I, therefore, find that there is sufficient credible, relevant evidence from which to find that Respondent engaged in a physical altercation with Complainant.

I further find that Respondent's violent acts are prejudicial to good order, discipline, and efficiency in this Department. While no human relationship is immune from periodic discord, violence is unacceptable, especially against an intimate partner. Members of Service who voluntarily agree to hold themselves to a higher standard of conduct than is ordinarily required must face the consequences of their actions. The misconduct charged in this specification is not merely a Patrol Guide violation, but criminal conduct committed by a police officer.

Based upon the foregoing, I find Respondent Guilty of Specification 1.

Specification 2: Failure to Make a Notification

I find that the Department Advocate has met her burden of proof by a preponderance of the credible, relevant evidence that Respondent failed to make notifications as required by Patrol Guide procedure 212-32.

Patrol Guide procedure 212-32 requires off-duty uniformed members of the service who are at the scene of an unusual police occurrence as a participant or a witness to remain at the scene and request the presence of the patrol supervisor in the Precinct of occurrence. "Unusual

police occurrence” includes “family disputes and other incidents of domestic violence in which the officer is either a participant or a witness” (P.G. 212-32). “If the incident occurred outside of the City, the uniformed member of the service concerned will promptly notify the Operations Unit” (*Id.*).

I find the June 27, 2022, incident at Respondent's mother's apartment was a domestic violence incident: the evidence establishes that he choked, struck, and dragged Complainant to the ground during a verbal altercation. I further find that Respondent's assertion that he had no duty to report because the altercation “never got physical” is against the weight of the credible evidence. Even if, as Respondent argued, the altercation was only verbal, it would still have qualified as a family dispute, leaving his duty to make a notification unchanged.

Respondent, as a sergeant in this Department, is one of the persons the Patrol Guide requires to respond to the scene of a domestic incident when acting as a patrol supervisor or to take the notification when serving as the desk officer; it is implausible that he was unaware of his obligations under the Patrol Guide in such incidents. Moreover, Respondent admitted that he left the scene of an incident in which he was involved when he knew the police were responding. His assertion that he walked for almost two hours without receiving a call from the Duty Captain but fortuitously picked up a call from his delegate is self-serving and unworthy of belief. Finally, his assertion that he never had the opportunity to make a notification because Sergeant Padilla called first is not credible.

Based upon the foregoing, I find Respondent Guilty of Specification 2.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances,

including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined (*See* 38 RCNY § 15-07). Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 6, 2011, has been found Guilty of engaging in a physical altercation and failing to make a required notification. The Department Advocate has recommended that his employment be terminated; I concur with their recommendation. I note that his performance evaluations and the many letters submitted in support of him by Members of Service and community members indicate that he has had an otherwise positive tenure with the NYPD. In this case, however, a solid employment record does not mitigate the egregious misconduct of which he has been found guilty.

The presumptive penalty for a physical act of domestic violence is 30 suspension days, dismissal probation, and a 24-week counseling program; the aggravated penalty is termination.

I find the following aggravating factors to have been established by the evidence:

- (1) Respondent caused physical injury to Complainant (10 suspension days – termination);
- (2) The presence of a minor child during the altercation;
- (3) Respondent's rank;
- (4) Respondent's lack of candor; and
- (5) Respondent's misconduct is likely to have an adverse impact on the Department with regard to its mission, reputation, credibility, and relationship with the community, and the impact upon public trust.

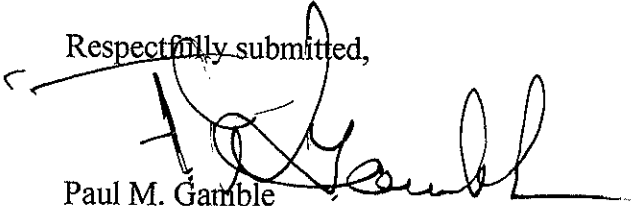
The evidence, in this case, establishes that Respondent, a twelve-year Member of Service and a supervisor, assaulted his girlfriend by placing his hands around her throat with enough pressure to leave a large red mark on her neck, dragging her on the floor, pulling her hair, and pushing her out of his mother's apartment.

The evidence is clear that he committed these acts while his minor son was in the apartment. Having listened to the recording of Complainant's first 911 call, it is implausible that Respondent's son did not hear Complainant's screams, yet Respondent called him as a witness to testify that, essentially, nothing happened because if it had, he would have heard it. Respondent called his son as a witness after previously telling Department investigators that K.S. was in the bedroom and heard nothing.

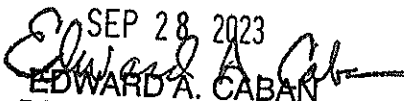
Respondent then left the explosive situation he created instead of remaining at the scene and calling for the presence of a supervisor. In doing so, he left his minor son to his own devices and sought the anonymity of the night. He continued to evade his responsibilities to this Department for at least two hours before he deigned to answer a phone call from his delegate advising him that he had to turn himself in at his command. During his sojourn, Complainant, who fled the scene for her safety, was able to meet police officers who took her report.

The evidence against Respondent and the substance of his testimony reveals that he lacks the integrity necessary to remain a Member of Service, let alone lead the men and women of this Department. I, therefore, recommend that he be DISMISSED from the Department.

Respectfully submitted,


Paul M. Gamble
Assistant Deputy Commissioner Trials

APPROVED

SEP 28 2023

EDWARD A. CABAN
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: SUMMARY OF EMPLOYMENT RECORD
SERGEANT GREGORY SMITH
TAX REGISTRY NO. 951274
DISCIPLINARY CASE NO. 2022-26571

Respondent was appointed to the Department on July 6, 2011. On his three most recent annual performance evaluations, he was rated “Exceeds Expectations” for 2017, 2018, and 2019.

Respondent has no disciplinary history. In connection with the instant matter, he was suspended without pay from June 28 to July 27, 2022, and was placed on Level 2 Discipline Monitoring on August 15, 2022. Monitoring remains ongoing.

For your consideration.

Paul M. Gamble
Assistant Deputy Commissioner Trials